**TOWN OF MOUNT PLEASANT, SOUTH CAROLINA**
**BOARD OF ZONING APPEALS**
**MAY 20, 2024**
**MINUTES**

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall,
Absent: Julian Hopkins
Staff: Chris Swalhah, Jane Yager-Baumrind

Mr. Wood called the meeting to order at 6:00 pm.

**A. Approval of Agenda**

*Ms. Hall moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.*

**B. Approval of Minutes**

*Mr. Butner moved to approve the minutes. Mr. Branch seconded the motion. All in favor.*

**C. Public Comment**
**D. General Correspondence**

There being no comments or correspondence, Mr. Wood continued with the agenda.

**E. Explanation of Procedures**
**F. Administration of Oath**

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

**G. Business**

1. **Case V-21-24, 1336 Langford Road, TMS# 560-06-00-108. Request for relief from §156.111(A)(5) to allow an accessory structure to exceed the maximum height requirement by 3-feet. The applicant is seeking to convert an existing detached garage to a detached office. The ordinance**

**limits the height of detached garages to 18-feet while all other detached buildings are limited to a height of 15-feet.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Anthony Polichemi, owner, reviewed the request with the Board.

- *Mr. Branch moved for approval based on the findings that the garage height is currently 18 feet and was properly permitted; conditions do not apply to others in vicinity; denial would prohibit use of the property as it cannot be properly permitted for an office; would not be a detriment to the neighborhood as other garages are at a similar height; with the condition that the garage is only used for an office and not an ADU. Ms. Stevens seconded the motion. All in favor.*

2. **Case V-22-24, 1870 Peaceful Way, TMS# 556-00-00-281. Request for relief from the strict application of §156.221(I)(2)(e)(1)(b) to allow the placement of an underground propane tank within a critical line buffer.**

   - Mr. Swalhah reviewed staff comments with the Board.

   - Ms. Cynthia Straut, owner, reviewed the request with the Board.

   There being no comments, Mr. Wood closed public comment.

   - *Ms. Stevens moved for approval based on the findings that the critical line buffer was established based on the existing statute at the time and if re-subdivided, the critical line buffer would not be required; there is no other place on property to locate the tank; conditions do not apply to other lots as it has a unique configuration; denial would unreasonably restrict the use of the property and there is no detriment to the neighborhood. Ms. Hall seconded the motion. Motion passed on a 4 to 2 vote with Mr. Branch, Ms. Stevens, Mr. Barrow, and Ms. Hall in favor; Mr. Wood and Mr. Butner opposed.*

There being no further business, the meeting adjourned 6:25 pm.

Submitted by,
L. Lynes
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